



## CHAPTER xxxv

An Act to confer further powers on the county council of the administrative county of the county palatine of Lancaster and on local authorities in relation to the local government improvement and health of the county palatine of Lancaster to make further provision as to the finances of the county and for other purposes. [1st August 1951.]

WHEREAS—

(1) It is expedient that further and better provision should be made for the local government improvement health and finance of the administrative county of the county palatine of Lancaster and that the powers of the county council of that administrative county (hereinafter referred to as “the Council”) and of the local authorities within the county should be enlarged and extended as by this Act provided :

(2) It is expedient that the other provisions contained in this Act should be enacted :

(3) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

## PART I

## PRELIMINARY

1. This Act may be cited as the Lancashire County Council Short title. (General Powers) Act 1951.



PART I  
—*cont.*  
Division of  
Act into Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Roads buildings etc.
- Part III.—Sanitation and food.
- Part IV.—Movable dwellings and camping grounds.
- Part V.—Financial provisions relating to Council.
- Part VI.—Financial provisions relating to local authorities.
- Part VII.—Miscellaneous.
- Part VIII.—Protective provisions.
- Part IX.—General.

Interpretation.

26 Geo. 5. &  
1 Edw. 8. c. 49.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires—

23 & 24 Geo. 5.  
c. 51.

“ Act of 1933 ” means the Local Government Act 1933 ;

“ Act of 1936 ” means the Public Health Act 1936 ;

1 & 2 Geo. 6.  
c. xciv.

“ Act of 1938 ” means the Lancashire County Council (Rivers Board and General Powers) Act 1938 ;

10 & 11 Geo. 6.  
c. 51.

“ Act of 1947 ” means the Town and Country Planning Act 1947 ;

19 & 20 Geo. 5.  
c. 17.

“ Claimed road ” means a county road in respect of which a local authority have claimed under section 32 of the Local Government Act 1929 to exercise and are exercising the functions of maintenance and repair ;

10 & 11 Geo. 6.  
c. 49.

“ Commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;

“ Council ” means the county council of the administrative county of the county palatine of Lancaster ;

“ County ” means the administrative county of the county palatine of Lancaster ;

“ County fund ” means the county fund of the Council ;

“ County road ” has the same meaning as in Part III of the Local Government Act 1929 ;



“Daily penalty” means a penalty for each day on which an offence is continued after conviction thereof;

“District” means a borough or an urban or rural district in the county;

“Enactment” includes this Act and any general or local Act order byelaw or regulation for the time being in force within the county or within a district;

“Food” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

1 & 2 Geo. 6.  
c. 56.

“General rate fund” and “general rate” mean respectively the general rate fund and the general rate of a district;

“Highway authority” means—

(a) in the case of a trunk road the Minister of Transport or with his consent the authority who are for the time being acting as his agent under the Trunk Roads Acts 1936 and 1946 with respect to that trunk road;

1 Edw. 8. &  
1 Geo. 6. c. 5.  
9 & 10 Geo. 6.  
c. 30.

(b) in the case of a county road (other than a claimed road) the Council; and

(c) in the case of any other highway (not being a highway repairable by the commission) the local authority for the district in which the highway is situate;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 and by this Act;

9 & 10 Geo. 5.  
c. 57.

“Local authority” means the council of a district;

“Medical officer” means the medical officer of health of a district;

“Minister” means the Minister of Local Government and Planning;

“Parish council” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish;

“Statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include any annuities rentcharges or securities transferable by delivery or any securities of the Council a local authority or parish council;

38 & 39 Vict.  
c. 83.



PART I  
—cont.

“Statutory undertakers” means any company body or person authorised by an Act of Parliament or order having the force of an Act to supply electricity gas or water ;

“Street” and “road” have the meanings assigned to the word “street” in the Act of 1936 ;

“Urban district” means a borough or an urban district in the county ;

“Verge” includes lands situate between two carriageways and any part of a street which is not a carriageway footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

## PART II

## ROADS BUILDINGS ETC.

As to  
improvement  
of Trafford  
Park Road.

4.—(1) In this section—

“Stretford Corporation” means the mayor aldermen and burgesses of the borough of Stretford acting by the council of the said borough as the authority exercising the functions of highway authority in respect of the county road known as Trafford Park Road situate in Trafford Park ;

“Trafford Park” means the portion in the borough of Stretford of the area known as Trafford Park as defined in section 4 (Interpretation) of the Trafford Park Act 1904 ;

“the Trafford Park Company” means the Trafford Park Company incorporated by the Trafford Park Act 1904 ;

“the estates company” means Trafford Park Estates Limited.

(2) If arrangements are completed between the Stretford Corporation and the estates company and the Trafford Park Company with the concurrence of the Council to widen the portion of Trafford Park Road situate in Trafford Park extending westwards for a distance of seven hundred yards or thereabouts from the eastern boundary of the premises of the Co-operative Wholesale Society the Trafford Park Company shall permanently abandon take up and remove the whole of the railway line of the Trafford Park Company situated on the north side of the said portion of Trafford Park Road together with the two connections of such railway line across the road to the railway of the Trafford

4 Edw. 7.  
c. ccxxv.



Park Company situate on the south side thereof all of which railway lines together with other railway lines were sanctioned and confirmed by section 5 (Confirmation of existing railways) of the Trafford Park Act 1922:

12 & 13 Geo. 5.  
c. xxvii.

Provided that the said railway line shall not be abandoned taken up and removed by the Trafford Park Company until six new railway connections have been constructed under the provisions of section 40 (For the protection of owners &c. in Trafford Park) of the Stretford Urban District Council Act 1904 at the expense of the Council from the Trafford Park Company's railways on the south side of the said Trafford Park Road across Trafford Park Road to the premises on the north side of the said road of the firms whose existing railway connections are with the railway line to be abandoned and removed on the north side of the said road.

4 Edw. 7.  
c. ccxxvi.

(3) Upon the completion of the widening of the aforesaid portion of Trafford Park Road the Stretford Corporation may stop up and extinguish all rights of way over the site of the two portions of Trafford Park Road immediately to the north of the railway on the south side thereof belonging to the Trafford Park Company which have an approximate width of one foot nine inches and the first of which portions extends for a distance of eight hundred and ninety-eight and one-third yards in a westerly direction from a point forty-four yards west of the junction of the centre line of Trafford Park Road with the westerly building line of Trafford Road to a point nine hundred and forty-two and one-third yards west thereof and the second of which portions extends for a distance of four hundred and ninety and one-third yards in a westerly direction from a point nine hundred and sixty-one and two-third yards west of the said junction to a point one thousand four hundred and fifty-two yards west thereof and thereupon the site and soil of the said two portions of Trafford Park Road aforesaid and the fee simple and inheritance thereof respectively shall be and are hereby vested in the estates company.

5.—(1) Subject to the provisions of this section the Council may enter into and carry into effect agreements with persons having a legal interest in land adjoining any county road in the county for the adjustment of the boundary of the road.

Adjustment of  
boundaries of  
county roads.

(2) For the purposes of this section the Council—

- (a) may exchange land including land forming the site of the road for other land and pay or receive money for equality of exchange; and
- (b) shall be deemed to be the owners of the land forming the site of the road and shall be entitled to convey any such land in accordance with the agreement.



PART II  
—cont.

(3) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the district in which such land is situate.

(4) During the said period of one month any four ratepayers of the district may appeal to a court of summary jurisdiction against the proposal to enter into the agreement.

(5) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Council in any case in which the consent of that department would have been required if this Act had not been passed.

(6) In this section the expression "ratepayers" has the same meaning as in the Rating and Valuation Act 1925.

15 & 16 Geo. 5.  
c. 90.

Crossings over  
footways. 6.—(1) Where the owner or occupier of any premises in the county which abut on any street repairable by the inhabitants at large habitually uses or permits to be used any grass verge or kerbed or paved footway in the street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle or invalid carriage) in passing to and from those premises the highway authority may by notice to the owner or occupier (as the case may be) either—

- (a) require the construction across the grass verge or footway of a carriage-crossing constructed of such materials and in such manner as may be specified in the notice ; or
- (b) in the case of a footway require it to be strengthened or adapted in such manner as may be so specified ; or
- (c) impose such other reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as may be so specified :

Provided that this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a requirement of or a condition imposed by the highway authority under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If the highway authority make any requirement under paragraph (a) or paragraph (b) of subsection (1) of this section they may but no other person shall execute such works as may be necessary to secure compliance with that requirement and may recover the expenses of so doing from the owner or occupier.



(4) If the highway authority impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 7 Edw. 7. c. 53. 1907 shall cease to be and shall not be declared to be in force in a district and the following provisions of this subsection shall have effect in lieu thereof as respects streets in the county which are repairable by the inhabitants at large :—

- (a) Any person desiring to form a carriage-crossing across a grass verge or footway in any such street or to strengthen or adapt a part of any such footway as a carriage-crossing shall apply in writing to the highway authority giving particulars of the work proposed ;
- (b) The highway authority may approve the work proposed either with or without modifications or propose alternative work or reject the application ;
- (c) The highway authority shall give the applicant notice of their decision under the foregoing paragraph and if they approve the work proposed or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them ;
- (d) The applicant may deposit with the highway authority the amount of the said estimate and require them to execute the work as approved or proposed by them but shall not himself execute any such work ;
- (e) As soon as practicable after such a deposit has been made the highway authority shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the highway authority by or to the applicant as the case may require.

(7) References in this section to an estimate of the cost of the work shall include the estimate as notified by any statutory undertakers under section 36 (For protection of certain statutory undertakers) of this Act and any reference to works approved or proposed by the highway authority shall include the alteration of any apparatus under that section.

(8) The expenses payable by a highway authority under section 36 (For protection of certain statutory undertakers) of



PART II  
—cont.

this Act shall be deemed to be part of the expenses recoverable under subsection (3) of this section or as the case may be part of the cost of the work under subsection (6) of this section.

Power to erect  
fences on  
roads.

7.—(1) The highway authority may place and keep in repair on any road fences and posts for the safety of persons using such road.

(2) The powers of this section shall not be exercised so as to interfere with the existing vehicular access to any land or premises from such road.

Public seats  
in roads.

8. Any parish council with the consent of the highway authority and subject to such conditions as the highway authority impose may in proper and convenient situations in any road or roadside waste thereof provide and erect and maintain seats for the use of the public.

Milk stands  
in roads.

9. Any person with the consent of the highway authority and subject to such conditions as they may impose may in proper and convenient situations in any road or roadside waste thereof erect and maintain stands for milk churns and containers:

Provided that the consent of the highway authority shall not be given to the erection of any stand in any road or roadside waste thereof in such a situation as to obstruct an existing access to any land or premises abutting on such road.

Shelters etc.  
for passengers  
on public  
service vehicles.

10.—(1) In any street in a district or on land belonging to them and abutting on any such street the local authority may subject to the provisions of this section erect and maintain at stopping places on the routes of public service vehicles—

(a) shelters and other accommodation for persons intending to travel by such vehicles; and

(b) barriers for the regulation of queues of such persons:

Provided that the powers of this section for the erection of barriers shall not be exercisable in any district in which byelaws under section 75 of the Public Health Act 1925 are for the time being in force.

15 & 16 Geo. 5.  
c. 71.

(2) The local authority shall not exercise the powers of this section—

(a) without the consent of the Minister of Transport in any street being a trunk road or on land abutting on any such street; or

(b) without the consent of the Council in any street being a county road (other than a claimed road) or on land abutting on any such street; or



(c) without the consent of the undertakers concerned—

(i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street; or

(ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station dock wharf or depot of such undertakers; or

(iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any transport undertakers; or

(d) without the consent of the owner of the land or premises concerned in any street or on land abutting on any street in such manner as to obstruct an existing access to any land or premises abutting on such street.

(3) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the local authority shall remove any shelter or other accommodation or barriers either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(4) Any question arising as to whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any shelter or other accommodation or barriers has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers;

(b) in the case of any other consent be referred to and determined by the Minister of Transport.

(5) A local authority may enter into and carry into effect agreements with any person authorised to run public service vehicles within their district in relation to the erection maintenance and use of any such shelter or other accommodation or barriers and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(6) In this section the expression “public service vehicle” has the same meaning as in the Road Traffic Acts 1930 to 1947 and the expression “transport undertakers” means any railway dock canal inland navigation or passenger road transport undertakers.



PART II  
—cont.

As to direction  
posts relating  
to rights of  
way.

**11.**—(1) Any parish council may erect and maintain direction posts of such size and type as may be approved by the Council in or adjacent to public footpaths (not being footpaths at the sides of a public road) and bridle-paths with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control and management of such land.

(2) The powers conferred by this section on a parish council shall be deemed to be a function of a parish council for the purposes of section 273 of the Act of 1933.

Evasion by  
owners of  
private street  
works  
expenses.

**12.**—(1) If—

- (a) any owner of land fronting adjoining or abutting on a private street in the county transfers the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (b) any expenses of private street works in or in relation to that street are apportioned on that part or portion of that land; and
- (c) the highway authority are unable to recover those expenses in whole or in part from the person to whom that part or portion of the land was transferred or by the sale thereof; and
- (d) a court of summary jurisdiction is satisfied that the transfer was intended for the purpose of evading the payment of any expenses of private street works;

then the expenses so apportioned or so much thereof as has not been recovered by the highway authority may to such extent as the court may determine be recovered from the owner in the same manner as expenses of private street works may be recovered as though he had not made the transfer.

(2) In this section the following expressions have the following meanings:—

55 & 56 Vict.  
c. 57.  
38 & 39 Vict.  
c. 55.

“private street” means a street within the meaning of the Private Street Works Act 1892 or a street to which section 150 of the Public Health Act 1875 applies or land which is deemed to be a private street by virtue of subsection (2) of section 48 of the Act of 1947;

“private street works” means works executed under the Private Street Works Act 1892 or section 150 of the Public Health Act 1875 or in relation to land which is deemed to be a private street as aforesaid works executed under either of those Acts as applied by subsection (3) of the said section 48;

“transfer” includes any disposal of land whether by way of sale lease exchange gift or otherwise and “transfers” shall be construed accordingly.



## PART III

## SANITATION AND FOOD

13.—(1) As from the appointed day the following provisions shall have effect in a district with respect to the slaughter of any of the following animals namely horses cattle sheep goats or pigs where the animal owing to emaciation or disease is slaughtered otherwise than for sale for human consumption within the meaning of the Public Health (Meat) Regulations. Slaughter of animals otherwise than for human consumption.

(2) The owner of any such animal shall comply with the following provisions:—

- (a) he shall not less than twelve hours before slaughtering the animal or causing it to be slaughtered give notice to an authorised officer of the intention to slaughter it unless by reason of accidental injury illness or exposure to infection it is necessary to slaughter it before the expiration of twelve hours from the giving of such notice or before such notice is given ;
- (b) where it is necessary by reason aforesaid to slaughter the animal before the expiration of the said twelve hours he shall retain the carcase intact until the expiration of twelve hours from the time of slaughter or until its disposal is approved by an authorised officer whichever first occurs ;
- (c) where it is necessary by reason aforesaid to slaughter the animal before such notice is given he shall give notice of the slaughter to an authorised officer as soon as practicable thereafter and shall retain the carcase intact until the expiration of twelve hours from the time when notice is given under this paragraph or until its disposal is approved by an authorised officer whichever first occurs ;
- (d) he shall on the application of an authorised officer made within two weeks from the date of the slaughter of the animal furnish such information within his knowledge as that officer may reasonably require for the purpose of enabling him to trace the disposition of the carcase or any part thereof.

(3) If any person—

- (a) fails to comply with any of the provisions of subsection (2) of this section ; or
- (b) furnishes in response to an application under paragraph (d) of that subsection information which he knows to be false ;

he shall be liable to a penalty not exceeding ten pounds.



PART III  
—cont.14 Geo. 6.  
c. 36.

1 Edw. 8. &amp;

1 Geo. 6. c. 70.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Act 1950 or Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

(5) In this section—

(a) the expression “authorised officer” means any officer of a local authority who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act relating to unsound food ;

(b) the expression “Public Health (Meat) Regulations” means regulations for the time being in force under section 8 of the Food and Drugs Act 1938 or having effect by virtue of subsection (3) of section 101 of that Act as if they had been made under the said section 8.

Registration of  
hawkers of  
food and their  
premises.

14.—(1) As from the appointed day the following provisions shall have effect in a district:—

(a) No person shall sell or offer or expose for sale any food from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless he is registered by the local authority ;

(b) No premises shall be used as storage accommodation for food intended for sale from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless the premises are registered by the local authority :

Provided that nothing in this subsection shall apply—

(i) to the sale or offer or exposure for sale of food by a person keeping open shop for the sale of food or by a person employed and in the course of his employment by such a person or to the use by a person so keeping open shop or by a person employed and in the course of his employment by such a person of any premises as storage accommodation for food intended for sale by him or his employer as the case may be ;

(ii) to the sale or offer or exposure for sale of food by a dairyman registered under regulations for the time being in force under Part II of the Food and Drugs Act 1938 as amended by any subsequent enactment or by a person employed and in the course of his employment by such a dairyman or to the use by any person as storage accommodation for food of a dairy so registered ;

(iii) to the use by any person as storage accommodation for food of premises registered under section 14 of the Food and Drugs Act 1938 ;



- (iv) to the sale or offer or exposure for sale of food by any person on premises owned or occupied by him or his employer or to the use by any person of any premises owned or occupied by him or his employer as storage accommodation for food intended for sale by him or his employer on those or any other such premises ;
- (v) to the sale or offer or exposure for sale of food by any person or to the use of any premises as storage accommodation for food intended for sale if the profits of the sale are devoted to a religious or charitable purpose ;
- (vi) to the sale or offer or exposure for sale of food by any person or by any person employed by him at any market or fair for which either such person has paid a toll stallage or rent or to the use of any premises in any such market or fair as storage accommodation for food intended for sale by any such person at such market or fair.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the occupier or intending occupier thereof.

(4) If it appears to the local authority—

- (a) that the public health is or is likely to be endangered by any act or default of a person who has applied to be or is registered under this section being an act or default in relation to the quality storage or distribution of food ; or
- (b) that any premises in respect of which an application has been made for registration under this section or which are registered under this section do not satisfy the requirements of subsection (1) of section 13 of the Food and Drugs Act 1938 or are otherwise unsuitable for use as storage accommodation for food intended for sale as aforesaid ;

the local authority shall serve on that person or on the person applying for the registration of the premises or in the case of premises which are registered the occupier of the premises a notice—

- (i) stating the place and time (not being less than seven days after the date of the service of the notice) at which it is proposed that a committee of the local authority shall take the matter into consideration ; and



PART III  
—cont.

(ii) informing him that he may attend before the said committee with any witnesses whom he desires to call at the place and time mentioned to show cause why the local authority should not for reasons specified in the notice refuse to register him or the premises or revoke his or their registration (as the case may be).

(5) If a person on whom a notice is served under the last preceding subsection fails to show cause to the satisfaction of the said committee the local authority may refuse to register him or the premises or revoke his or their registration (as the case may be) and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(6) Any person aggrieved by a decision of the local authority under the last preceding subsection may appeal to a court of summary jurisdiction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(8) In this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

(9) On the day on which this section comes into operation in any district the following sections of the Act of 1938 (namely):—

section 115 (Registration in county districts of hawkers of meat fish fruit and vegetables and premises); and

section 116 (Registration in county districts of premises used in connection with sale of ice-cream or preserved food);

shall cease to have effect therein and any person or premises registered in that district under that section shall be deemed to have been registered under this section.

Commence-  
ment of  
certain  
provisions of  
Part III.

**15.—**(1) For the purposes of this Part of this Act the expression "the appointed day" means in relation to a district such day as may be fixed by resolution of the local authority for that district subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Part of this Act.



(3) The local authority shall cause to be published in a local newspaper circulating in the district a notice—

(a) of the passing of any such resolution and of the date fixed thereby ; and

(b) of the general effect of the provisions of this Part of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) A copy of any such newspaper containing any such notice or a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice shall be evidence of the publication of the notice and of the date of publication of the said notice.

(5) Where any provision of this Part of this Act coming into operation as aforesaid requires the registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

(a) immediately before that day was carrying on that business or using any premises for that purpose ; and

(b) had before that day duly applied for the registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 47 (Appeals) of this Act.

#### PART IV

##### MOVABLE DWELLINGS AND CAMPING GROUNDS

16. In this Part of this Act unless the context otherwise requires—

Definitions for  
Part IV.

“ movable dwelling ” includes—

(a) any tent ;

(b) any structure capable of being moved from place to place ; and

(c) any van cart carriage truck tramcar railway carriage motor car caravan trailer or other vehicle ; used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—

(i) any tent structure or vehicle temporarily used by shepherds labourers or other persons for farming agricultural or other like purposes or in connection with building operations ;



PART IV  
—cont.

(ii) any tent structure or vehicle temporarily used for the service of the council of any county or county borough or county district or other public authority ;

(iii) any canal boat or any other boat ;

(iv) any shelter provided by the Council for the treatment of tuberculosis or in connection with an open-air school ;

(v) any vehicle used by the commission in connection with the maintenance and repair of their undertaking ; or

(vi) any van or similar vehicle belonging to any statutory undertakers and any trailers drawn by such van if and so long as the van and trailers are used by those undertakers as travelling showrooms or for the purpose of giving exhibitions and demonstrations of the electrical gas or water appliances provided by those undertakers and the manner in which such appliances can be used ;

“camping ground” means any area of land on which movable dwellings are situated or which is provided for the placing of movable dwellings ;

“occupier” in relation to a movable dwelling shall be deemed to include an owner.

Court may prohibit movable dwellings in certain cases.

**17.**—(1) Where it appears to any local authority—

- (a) that the amenities of any part of their district are prejudicially affected by the presence of or conditions arising from any movable dwelling or movable dwellings in their district ; or
- (b) that annoyance is caused to the residents in or visitors to any part of their district by reason of the noisy indecent or other offensive conduct of the occupiers of or persons frequenting any movable dwelling or movable dwellings in their district ;

the local authority may make complaint to a court of summary jurisdiction and the court may by order—

- (i) require the removal by the occupier or occupiers thereof within such period as may be prescribed by the order of the movable dwelling or of all or any particular one or more of the movable dwellings to which the complaint relates ; and
- (ii) prohibit any movable dwelling being placed on or limit the number or define the class of movable dwellings to be at any one time situate within the whole or some part of an area to be specified in the order.



(2) Any person aggrieved by any order made by a court of summary jurisdiction under subsection (1) of this section may appeal to the next practicable court of quarter sessions holden in or for the county.

(3) An order made by a court of summary jurisdiction under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings shall take effect as from the expiration of fourteen days from the first publication of the terms of the order in the local newspaper under subsection (4) of this section and the area specified in such order shall not extend beyond the distance of two hundred yards from the movable dwelling or all of the movable dwellings to which the complaint related and no limitation or definition in such an order shall operate so as to prevent the retention on the area specified in the order of any movable dwelling not being a movable dwelling to which the complaint related.

(4) As soon as practicable after the making of an order under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings the terms of the order shall be published by the local authority or local authorities of the district or districts within which the area specified in the order is situate in one or more local newspapers circulating in their district or districts and by placards posted in conspicuous positions in or near to some part of that area and such placards shall be left so posted so long as the order is in force.

(5) (a) Any occupier of a movable dwelling who fails to comply with any order of the court made under subsection (1) of this section requiring the removal of a movable dwelling within the period prescribed by the order shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the local authority on whose complaint the order was made may themselves at any time after the expiration of the said period enter on the land and remove the movable dwelling and recover the expense of so doing from the occupier or occupiers.

(b) Any person who places or retains any movable dwelling in contravention of any order of the court made under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the local authority on whose complaint the order was made may themselves enter on the land and remove the movable dwelling in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.



PART IV  
—cont.

(6) (a) Where a court of summary jurisdiction has made an order under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings an application for the rescission of the order may be made to the court—

- (i) at any time by the local authority on whose complaint the order was made ; or
- (ii) at any date not being less than three years from the date on which the order was made by any person deeming himself aggrieved by it provided he gives to the local authority not less than fourteen days' notice of his intended application ;

and the court may on the hearing of any such application rescind the order.

(b) If the court rescinds the order notice of the rescission of the order shall as soon as practicable be published by the local authority or local authorities of the district or districts within which the area to which the order related is situate in one or more local newspapers circulating in their district or districts and the local authority or local authorities shall forthwith take down and remove all placards previously posted by them in or near to that area in pursuance of subsection (4) of this section.

(7) An order made under this section shall not operate so as to prohibit any development or require the discontinuance of any use for which planning permission under Part III of the Act of 1947 has already been granted otherwise than by a development order but without prejudice to the power of the court by order to require the removal of any particular one or more movable dwellings with respect to which the local authority have complained on any of the grounds mentioned under paragraph (b) of subsection (1) of this section.

Further  
provisions as to  
movable  
dwellings.  
51 & 52 Vict.  
c. 52.

**18.**—(1) A movable dwelling upon land abutting upon a street in the county shall be deemed to be a house or building within the meaning of those words where they occur in the Public Health (Buildings in Streets) Act 1888.

(2) It shall not be lawful without the written consent of the local authority to place any movable dwelling upon any square court alley or passage to which the public have access.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.



19.—(1) Any local authority for the purpose of securing the amenities of their district in relation to the use of camping grounds and movable dwellings situate thereon may make bye-laws with respect to any camping grounds within their district—

PART IV  
—cont.

Byelaws as to  
camping  
grounds.

(a) for preventing the amenities of their district being prejudicially affected by the state or condition of any such camping ground ;

(b) for securing the good and orderly conduct of persons frequenting any such camping ground and of the occupiers of the movable dwellings situate thereon ;

(c) for preventing annoyance to the residents in or visitors to their district by the conduct of the occupiers of or persons frequenting movable dwellings situate on any such camping ground.

(2) As respects byelaws made under this section the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister.

20. The following sections of this Act :—

Savings from  
certain  
provisions of  
Part IV.

Section 17 (Court may prohibit movable dwellings in certain cases) ; and

Section 19 (Byelaws as to camping grounds) ;  
shall not apply to—

(a) any movable dwelling or camping ground provided by or belonging to or used by any duly constituted religious or charitable society ;

(b) any movable dwelling or camping ground provided by or belonging to or used by any association incorporated by royal charter or any organisation constituted by any such last-mentioned association in pursuance of their charter ;

(c) any camping ground provided by or belonging to or used by members of any other duly constituted society or body operating throughout Great Britain which by their rules undertake for the management of the camping grounds provided by or belonging to them and used by their members and for the good conduct of their members when in camp ;

(d) any movable dwelling situate on any such camping ground as is referred to in the foregoing paragraph (c) while the dwelling is occupied or used by the members of any society or body referred to in that paragraph ;

(e) any movable dwelling which is used by a member of any duly constituted society or organisation operating



PART IV  
—cont.

throughout Great Britain which by their rules undertake responsibility for the good conduct of their members when in camp and for the proper use by their members of movable dwellings ; or

- (f) any person dwelling in a tent or van or other similar structure who is a travelling roundabout proprietor travelling showman or stallholder (not being a pedlar or hawker) and who uses such tent van or other structure in connection with his business :

Provided that—

- (i) the exemptions conferred by the foregoing paragraphs (a) and (b) in respect of any movable dwelling or camping ground referred to in those paragraphs shall apply only for so long as the society body association or organisation by or to which such movable dwelling or camping ground is provided or belongs or is used shall continue to make and enforce reasonable arrangements for the maintenance of good order amongst the persons using the movable dwelling and for the proper management of the camping ground ;
- (ii) the exemptions conferred by the foregoing paragraphs (c) and (d) in respect of any camping ground or movable dwelling referred to in those paragraphs shall only apply so long as the society or body by or to which such camping ground is provided or belongs or is used or by the members of which such movable dwelling is occupied or used are duly exercising responsibility for the management of the camping ground and for the good conduct of their members when in camp thereon ;
- (iii) the exemption conferred by the foregoing paragraph (e) in respect of a movable dwelling used by a member of a society or organisation shall apply only so long as that society or organisation continues to enforce good conduct among its members and their proper use of movable dwellings ;
- (iv) the exemption conferred by the foregoing paragraph (f) on any person referred to in that paragraph shall apply only so long as such person is not guilty of any misconduct ;
- (v) if any society or body referred to in the said paragraph (a) are using any camping ground provided by a local authority or if any person being a member of any such society or body or a person referred to in the said paragraph (e) is occupying or using a movable dwelling situate on any camping ground so provided the members of such society or body or such person shall



while camping on or occupying or using any movable dwelling situate on that camping ground comply with any byelaws made by the local authority under this Part of this Act respecting that camping ground.

PART IV  
—cont.

## PART V

### FINANCIAL PROVISIONS RELATING TO COUNCIL

21.—(1) The Council may establish a fund to be called “ the Capital fund. capital fund ” to which they may pay—

- (a) any sums derived from the sale of any property of the Council ;
- (b) the balance or any part of the balance of the county fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year ; and
- (c) such other sums from the county fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the Council may by resolution direct (not being moneys required by law to be applied to any other purpose) :

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of three times the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925 ;
- (ii) payments into the capital fund shall not be made whenever the said fund amounts to three hundred thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Council may apply the moneys in the capital fund to an amount not exceeding in any one transaction the sum of fifteen thousand pounds or such greater sum as may be allowed by the Minister in any case in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with any undertaking from which revenue is derived) or in providing money for repayment of loans (but not in making the annual payment required to be made thereto).



PART V  
—cont.

(3) (a) Pending the application of the capital fund to the purposes authorised in the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to the county fund as receipts for general county purposes and (subject to the limitation imposed by proviso (ii) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital fund out of the county fund.

(4) All moneys derived from the sale of land which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Council think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Council.

Renewal and  
repairs fund.

22.—(1) The Council may establish a fund to be called "the renewal and repairs fund" for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply the moneys in the fund in defraying such expenditure.

(2) The Council may from time to time pay into the renewal and repairs fund such sums as they think fit from the county fund (including a sum equal to the interest earned on the renewal and repairs fund and any income arising from the application of that fund to the purposes authorised) but the maximum amount standing to the credit of the renewal and repairs fund shall not except with the approval of the Minister at any time exceed three hundred thousand pounds.

(3) (a) Pending the application of the moneys in the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to the county fund as receipts for general county purposes.



## PART VI

## FINANCIAL PROVISIONS RELATING TO LOCAL AUTHORITIES

23.—(1) A local authority may establish a fund to be called “the capital fund” to which they may pay—

Capital fund  
of local  
authorities.

- (a) any sums derived from the sale of any property of the local authority other than property of a passenger road transport undertaking of the local authority ;
- (b) the balance or any part of the balance of the general rate fund (not required by law to be applied to or carried forward for any other purpose) ; and
- (c) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the local authority may by resolution direct (not being moneys required by law to be applied to any other purpose) :

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of twice the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925 ;
- (ii) payments into the capital fund shall not be made whenever that fund amounts to a sum representing one-tenth of the rateable value of the district of the local authority at the first day of April in the financial year in which the local authority establish the said fund or such greater proportion as may be allowed by the Minister in any case and for the purpose of ascertaining such proportion any part of five thousand pounds shall be deemed to be five thousand pounds.

(2) The local authority may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with an undertaking from which revenue is derived) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor) :

Provided that the amount to be expended under this subsection shall not exceed the sum of five thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.



PART VI  
—cont.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the local authority which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the local authority think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the local authority.

(5) Any sum derived from the sale of any corporate land of the local authority as defined by section 305 of the Act of 1933 and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

Renewal and  
repairs fund  
of local  
authorities.

24.—(1) The provisions of section 22 (Renewal and repairs fund) of this Act shall extend and apply to a local authority as if—

- (a) the local authority were therein referred to in lieu of the Council;
- (b) the general rate fund were therein referred to in lieu of the county fund; and
- (c) such sum as the Minister may prescribe were therein referred to in lieu of the sum of three hundred thousand pounds:

Provided that the provisions of the said section 22 shall not extend and apply to any expenditure of the local authority in connection with any buildings works plant appliances or things for the purposes of any undertaking of the local authority in respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) Any renewal and repairs fund established by a local authority apart from this section shall be carried to and form part of any renewal and repairs fund provided by that local authority under this section.

Insurance fund  
of local  
authorities.

25.—(1) A local authority may with the consent of the Minister establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for



making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the local authority (in this section referred to as "the specified risks").

PART VI  
—cont.

(2) The establishment of an insurance fund under this section shall not prevent the local authority from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the local authority shall pay into the insurance fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the local authority fully insured in some insurance office of good repute against the specified risks ; or

(b) if the local authority insure in some insurance office against the whole or any part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the local authority may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the local authority shall recommence and continue the yearly payments to the fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The local authority shall provide the yearly payments aforesaid by contributions from the revenue of the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the local authority which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the local authority in respect of such investment shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the local authority shall in every year so long as the fund is less than the prescribed



PART VI  
—cont.

amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the local authority in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the local authority between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the local authority in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the local authority may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the local authority under the separate headings or divisions in respect of such undertakings departments or services of the local authority and in such proportions as the local authority may determine having regard to the risks through which such deficiencies arise.

(8) Two or more local authorities having power to exercise the powers of this section may exercise that power jointly.

(9) In this section "the prescribed amount" means such sum as may from time to time be prescribed by the local authority.

Application of  
section 101 of  
Act of 1938  
to local  
authorities.

26.—(1) The powers conferred by section 101 (As to payments due to deceased employees) of the Act of 1938 shall *mutatis mutandis* extend to and may be exercised by a local authority.

(2) Subsection (3) of the said section 101 is hereby repealed.

Amendment  
and extension  
of section 107  
of Act of 1938.

27.—(1) Section 107 (Expenses in connection with ceremonies &c. and contributions to certain associations and societies) of the Act of 1938 shall be read and have effect as if the expression "reasonable payments" were substituted for the word "payments" where that word first occurs in subsection (1) of the said section.



(2) The powers conferred by the said subsection (1) as amended by this section shall mutatis mutandis extend to and may be exercised by a local authority.

PART VI  
—cont.

(3) Paragraph (a) of subsection (3) of the said section 107 is hereby repealed.

## PART VII

### MISCELLANEOUS

28.—(1) A local authority may provide and maintain a crematorium and shall be deemed to be a burial authority for the purposes of the Cremation Act 1902 notwithstanding that they do not maintain a cemetery under the Public Health (Interments) Act 1879.

As to provision of crematoria by local authorities.  
2 Edw. 7. c. 8.  
42 & 43 Vict. c. 31.

(2) Two or more local authorities may act jointly in the exercise of the powers of this section.

29.—(1) A local authority or parish council may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a cemetery provided by the local authority or parish council and the following provisions shall apply in relation to any such agreement:—

Agreements to maintain graves and tombstones.

(a) The said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities;

(b) If and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum;

(c) At the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the local authority or parish council may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment;

(d) The amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the local authority or parish council relating to the cemetery.

(2) In this section—

the expression “cemetery” includes a burial ground and a crematorium;



PART VII  
—cont.

the expression “grave” includes a grave space niche or urn ;

the expression “tombstone” includes a monument or other memorial of a deceased person.

Extension of  
power to  
maintain  
burial grounds.

**30.**—(1) The powers of a local authority in relation to a burial ground provided by them or a closed or disused burial ground maintainable by them shall include power to put and keep in order any grave or tombstone and remove the kerbs surrounding a grave therein subject to the following provisions :—

(a) Before exercising the powers of this section the local authority shall give notice of their intention so to do—

(i) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the district with an interval between each publication of not less than six clear days ; and

(ii) by displaying the notice in a conspicuous position in the burial ground ;

(b) Any such notice shall—

(i) contain a description of the works intended to be executed ; and

(ii) specify the date on which it is intended that those works will commence which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid ; and

(iii) state the effect of paragraph (c) of this subsection ;

(c) If notice of objection to the execution of any such works and of the ground thereof is given to the local authority before the date so specified and is not withdrawn before the expiration of fourteen days from that date the works to which the objection relates shall not be executed without the consent of the Minister ;

(d) All kerbs removed by the local authority under the powers of this section shall remain the property of the owner of the grave space from which they have been removed and if such owner does not claim them within a period of three months after the first publication of the advertisement referred to in this section the local authority may put the kerbs to such use as they may deem appropriate or they may destroy them ;

(e) Where any kerbs constitute a memorial the local authority shall after consultation with any known next



of kin at their own expense in substitution therefor erect a memorial stone of a value not exceeding twenty-five pounds at the head of the grave ;

- (f) The local authority shall cause to be made a record of any kerb surrounding a grave space removed under the powers of this section showing the particulars respecting each kerb so removed as a separate entry and a copy of such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(2) The powers of this section may be exercised by a parish council in connection with the maintenance of any burial ground provided by them or any closed or disused burial ground maintainable by them as if the parish council were a local authority.

(3) In this section—

the expression “ burial ground ” includes a cemetery ;

the expression “ grave ” includes a grave space ;

the expression “ tombstone ” includes a monument or other memorial of a deceased person.

**31.** The Council may defray such reasonable expenses as may be incurred in the rescue or succour of persons in distress on the hills coast or other parts of the county.

Expenses of  
rescue of  
persons  
in distress.

**32.**—(1) In this section—

“ the Act of 1937 ” means the Local Government Superannuation Act 1937 ;

“ the regulations ” means the National Health Service (Superannuation) Regulations 1950 ;

“ electing employee ” means a person who gives notice under subsection (2) of this section.

As to widows’  
pensions and  
other benefits.  
1 Edw. 8. &  
1 Geo. 6. c. 68.

(2) Any person who—

(a) at the date of the passing of this Act is ; or

(b) after the date of the passing of this Act becomes ;

a contributory employee in relation to the superannuation fund maintained by the Council but is not such an employee as is mentioned in paragraphs (a) (b) or (c) of regulation 47 (1) or in regulation 51 of the regulations may within six months after the date of the passing of this Act or at the date on which he becomes a contributory employee (as the case may be) give notice in writing to the Council that he desires that this section shall apply to him and thereupon the following provisions of this section shall extend and apply in relation to him for so long as he remains a contributory employee in relation to the superannuation fund maintained by the Council.



PART VII  
—cont.

(3) The Act of 1937 shall extend and apply in relation to any electing employee as if in consideration of the contributions required thereby there were substituted for any title accruing in respect of service reckonable thereunder to a superannuation allowance lump sum retiring allowance injury allowance or death gratuity a title to such benefits as are conferred by regulations 7 to 9 inclusive (as modified by regulation 34) and regulation 12 of the regulations and there were conferred by the Act in addition or in substitution for any similar benefits to which any electing employee might become entitled thereunder in respect of service reckonable under the Act of 1937 the benefits conferred by regulations 10 11 and 13 of the regulations and the Act of 1937 shall have effect accordingly with any necessary modifications:

Provided that in the application of any regulation in Part I of the regulations for the purposes of this subsection references to pensionable age shall be construed as references to the age of compulsory retirement references in regulations 6 (1) (a) and 19 (1) to such an age as is thereafter mentioned shall be construed as references to the age of compulsory retirement and references to forty-five years or forty-five eightieths respectively shall be construed as references to forty years and forty-eightieths respectively.

(4) The amount of any retiring allowance to which an electing employee to whom paragraph (a) of subsection (2) of this section applies may become entitled shall be increased as nearly as may be in accordance with the provisions of regulation 29 (3) of the regulations:

Provided that for the purposes of the calculation the period in respect of which any increase is payable shall be reckonable only up to the date of the passing of this Act.

(5) (a) The Act of 1937 in its application to any electing employee shall be further modified to provide that the employing authority may on any annual pension lump sum retiring allowance or death gratuity becoming payable to or in respect of the electing employee resolve that in respect of every year of non-contributing service there shall be substituted a fraction of his average remuneration larger than one-hundred-and-sixtieth but not exceeding one-eightieth:

Provided that any extra charge resulting from any resolution passed by an employing authority under this subsection shall be repaid by that authority to the superannuation fund maintained by the Council.

(b) For the purposes of the application of Part III of the Second Schedule to the Act of 1937 the reference in paragraph (c) of that Part to proviso (i) to paragraph (b) of subsection (2) of section 8 of that Act shall be construed as a reference to paragraph (a) of this subsection.



(6) The Act of 1937 in its application to any electing employee shall be further modified to confer a right on him by making payments similar to those provided for by the Third Schedule to the regulations to reckon any period of non-contributing service as a period of contributing service and shall have effect as if the provisions of the said Third Schedule (except so much of sub-paragraph (d) of paragraph 3 thereof as follows the word "cease" where that word occurs for the second time sub-paragraphs (e) and (f) of paragraph 3 and paragraph 4) were incorporated therein with the modification that the reference therein to the calculation of interest at the rate of two and one-half per centum with yearly rests shall be construed as a reference to the calculation of interest at the rate of three per centum per annum with half-yearly rests and with any other necessary modifications.

(7) Any pension or injury allowance to which any electing employee becomes entitled shall be granted subject to the conditions contained in regulations 23 and 24 of the regulations with any necessary modifications in lieu of any similar conditions in corresponding provisions of the Act of 1937:

Provided that where the electing employee is re-employed by any local authority within the meaning of the Act of 1937 and is in his new employment a contributory employee or local Act contributor regulation 5 of the Local Government Superannuation (Reduction and Adjustment of Superannuation Allowance) Regulations 1939 shall apply with any necessary modifications.

## PART VIII

### PROTECTIVE PROVISIONS

33.—(1) The provisions of section 26 of the Public Utilities Street Works Act 1950 (which relates to requirements as to undertakers' works which are likely to affect other undertakers' apparatus) shall apply to the taking up and removal of the railway line referred to in the following section of this Act as if the Trafford Park Company as defined in the last-mentioned section were operating undertakers and the said taking up and removal were undertakers' works within the meaning of the said section 26:—

Section 4 (As to improvement of Trafford Park Road).

(2) The code in Part II of the Public Utilities Street Works Act 1950 (which relates to cases where apparatus is affected by road works) shall have effect as if the works authorised by the following section of this Act were mentioned in paragraph (a) of subsection (1) of section 21 of the first-mentioned Act:—

Section 7 (Power to erect fences on roads).



## PART VIII

—cont.

For protection  
of Postmaster-  
General.

**34.**—(1) Where pursuant to section 5 (Adjustment of boundaries of county roads) of this Act the Council enter into an agreement with a person having a legal interest in land adjoining any county road for the conveyance to that person of the site of any part of the road and immediately before the date on which the site ceases to be part of the road there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the road:

41 & 42 Vict.  
c. 76.

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

(2) As between the Council and the Postmaster-General nothing in the foregoing subsection shall affect the operation of Part II of the Public Utilities Street Works Act 1950 or the rights of the Postmaster-General and the Council thereunder.

(3) In this section the expressions “alter” and “telegraphic line” have the same meanings as in the Telegraph Act 1878.

Saving for  
British  
Transport  
Commission.

**35.** The powers of section 7 (Power to erect fences on roads) of this Act shall not be exercised so as to interfere with the access to or exit from any station wharf or depot of the commission.

For protection  
of certain  
statutory  
undertakers.

**36.** For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the appropriate authority and the undertakers apply and have effect:—

(1) In this section—

“apparatus” means—

(a) as regards the North Western Electricity Board all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to that board;

(b) as regards the North Western Gas Board mains pipes and other works and apparatus belonging to that board; and

(c) as regards the remaining undertakers mains pipes and other works and apparatus belonging to those undertakers in connection with their respective water undertakings;

and includes any structure constructed for the lodging therein of apparatus;

45 & 46 Vict.  
c. 56.



“appropriate authority” means the Council the highway authority or the local authority as the case may be ;

“undertakers” means the North Western Electricity Board the North Western Gas Board the lord mayor aldermen and citizens of the city of Liverpool the lord mayor aldermen and citizens of the city of Manchester the mayor aldermen and burgesses of the borough of Oldham and the mayor aldermen and burgesses of the borough of Preston or any of them as the case may be :

- (2) Whenever the appropriate authority in the exercise of the powers of section 5 (Adjustment of boundaries of county roads) of this Act shall give up land forming part of a county road or the roadside waste thereof in exchange for other land there being in such first-mentioned land any apparatus the appropriate authority shall give notice in writing to the undertakers of such exchange with a plan showing the position and dimensions of the portion of the road or the roadside waste thereof so exchanged and the undertakers may if they think fit alter the position of such apparatus to such other position as may be reasonable having regard to the circumstances :

Provided that if the undertakers do not alter the position of such apparatus they shall continue to have the same powers and rights in respect of such apparatus as if an agreement under the said section had not been entered into :

- (3) Not less than twenty-one days before the appropriate authority pursuant to section 6 (Crossings over footways) of this Act—

(i) require approve (with or without modifications) or propose the construction or formation of a carriage-crossing across a path footway or verge in under upon over along or across which any apparatus is situate ; or

(ii) require approve (with or without modifications) or propose the strengthening or adapting of any such footway ; or

(iii) allow subject to conditions the use of any such path footway or verge as a crossing for any horse-drawn or mechanically propelled vehicle (other than a motor-cycle) ;

they shall give notice in writing to the undertakers to whom any apparatus in the proposed carriage-crossing



PART VIII  
—cont.

or in the footway to be strengthened or adapted belongs and if by reason of the carrying out of any works it shall be reasonably necessary to alter the position of the apparatus the undertakers may (and if reasonably so required by the appropriate authority shall) alter the position of the apparatus to such other position as may be reasonable :

- (4) (a) Within fourteen days after the receipt of notice from the appropriate authority under paragraph (3) of this section the undertakers if they intend to alter the position of any apparatus shall give notice of their intention to the appropriate authority together with a plan and section indicating their proposals and shall within the like period give to the appropriate authority an estimate of the cost of the works which the undertakers propose to carry out or if the appropriate authority have required an alteration of the position of any apparatus an estimate of the cost of the works connected therewith ;
- (b) If such plan and section are not disapproved by the appropriate authority within fourteen days from the receipt thereof the position of the apparatus shown thereon shall be deemed to be reasonable :
- (5) The undertakers shall not commence any works of alteration whether on the requirement of the appropriate authority or otherwise until the appropriate authority have informed the undertakers that the works may be commenced :
- (6) The appropriate authority shall repay to the undertakers the reasonable expenses incurred by the undertakers in connection with the alteration of the position of any apparatus under paragraphs (2) and (3) of this section :
- (7) Without prejudice to any of the provisions of the Public Utilities Street Works Act 1950 as applied to this Act the appropriate authority shall so exercise the powers of section 7 (Power to erect fences on roads) of this Act as to avoid so far as is reasonably practicable rendering less convenient the access to any apparatus :
- (8) If any structure erected by the appropriate authority under the powers of section 10 (Shelters etc. for passengers on public service vehicles) of this Act is situate over any apparatus laid or placed before the erection of the structure and the undertakers at any time after such erection give to the appropriate authority notice of their desire to obtain access to such apparatus the appropriate authority shall either remove temporarily the



structure or so much thereof as may be required to be so removed in order to afford such access or (if the appropriate authority determine not to remove the structure or part thereof) bear any additional expenses due to the existence of the structure which may reasonably be incurred by the undertakers in obtaining such access :

PART VIII  
—cont.

(9) (a) Any difference which may arise between the appropriate authority and the undertakers under this section shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator may if he thinks fit require the appropriate authority to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purposes for which the apparatus is used.

37. For the protection of the lord mayor aldermen and citizens of the city of Liverpool (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the corporation and the Council apply and have effect :—

For protection  
of Liverpool  
Corporation.

- (1) Whenever in the exercise of the powers of section 5 (Adjustment of boundaries of county roads) of this Act the Council exchange land forming the site of a county road and there are situated in or under such land any aqueducts mains pipes or other works constructed by the corporation under the powers of section 57 (Power to construct authorised works) of the Liverpool Corporation Act 1921 or the corporation are by that section authorised to construct works in under or across such land the Council shall give notice to the corporation of such exchange together with such plans and information relating thereto as the corporation may reasonably require : 11 & 12 Geo. 5. c. lxxiv.
- (2) Notwithstanding the exchange of any such land the corporation shall continue to have all such rights and powers of constructing and maintaining aqueducts mains pipes and other works in under or across such land as they would have had under the said section if such land had continued to form part of the county road :
- (3) The provisions of paragraph (2) of section 36 (For protection of certain statutory undertakers) of this Act shall not apply where this section applies.



PART VIII  
—cont.For protection  
of Manchester  
Corporation.

38. For the protection of the lord mayor aldermen and citizens of the city of Manchester (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the corporation and the Council apply and have effect :—

9 & 10 Geo. 5.  
c. cxix.

(1) In this section "the Act of 1919" means the Manchester Corporation Act 1919 :

(2) Whenever in the exercise of the powers of section 5 (Adjustment of boundaries of county roads) of this Act the Council exchange land forming the site of a county road and there are situated in or under such land any aqueducts mains pipes or other works constructed by the corporation under the powers of the Act of 1919 or the corporation are by that Act authorised to construct works in under or across such land the Council shall give notice to the corporation of such exchange together with such plans and information relating thereto as the corporation may reasonably require :

(3) Notwithstanding the exchange of any such land the corporation shall continue to have all such rights and powers of constructing and maintaining aqueducts mains pipes and other works in under or across such land as they would have had under the Act of 1919 if such land had continued to form part of the county road :

(4) The provisions of paragraph (2) of section 36 (For protection of certain statutory undertakers) of this Act shall not apply where this section applies.

For protection  
of Mersey  
Docks and  
Harbour  
Board.

39.—(1) The powers conferred on the appropriate authority or on any person with the authority or consent of the appropriate authority by—

section 7 (Power to erect fences on roads) ;

section 8 (Public seats in roads) ;

section 9 (Milk stands in roads) ; or

section 10 (Shelters etc. for passengers on public service vehicles) ;

of this Act shall not be exercised except with the consent of the Mersey Docks and Harbour Board (hereinafter referred to as "the board")—

(a) on any road or street repairable by the board ;

(b) on any road situate upon or under any bridge belonging to or repairable by the board ; or



(c) so as to obstruct or interfere with the access to or exit from any dock or wharf of the board or any land in the borough of Crosby belonging to them or used for the purposes of the board's undertaking:

PART VIII  
—cont.

Provided that such consent shall not be unreasonably withheld but may be given subject to any reasonable conditions including the condition that the appropriate authority shall remove any erection either at any time or at or after the expiration of a period if reasonably required so to do by the board and any question arising as to whether any such consent has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any erection has been unreasonably required shall be determined by arbitration.

(2) In this section "appropriate authority" means the Council or any highway authority parish council or local authority upon whom powers (including the power to give any authority or consent) are conferred by the said sections 7 8 9 and 10 of this Act.

40. The following provisions for the protection of the Manchester Ship Canal Company (in this section referred to as "the company") shall have effect:—

For protection  
of Manchester  
Ship Canal  
Company.

(1) The powers conferred by—

- section 7 (Power to erect fences on roads) ;
- section 8 (Public seats in roads) ;
- section 9 (Milk stands in roads) ; or
- section 10 (Shelters etc. for passengers on public service vehicles) ;

of this Act shall not without the consent of the company be exercised on or in any road or street repairable by the company:

(2) The powers of the said section 7 and the said section 10 shall not be exercised so as to obstruct or interfere with the access to or exit from any dock wharf or depot of the company or any land belonging to the company which at the date of the passing of this Act is held or used by them for the purposes of their undertaking.

41.—(1) The powers conferred on the appropriate authority or on any person with the authority or consent of the appropriate authority by—

- section 7 (Power to erect fences on roads) ;
- section 8 (Public seats in roads) ;
- section 9 (Milk stands in roads) ; or

For protection  
of Liverpool  
Overhead  
Railway  
Company.



PART VIII  
—cont.

section 10 (Shelters etc. for passengers on public service vehicles);

of this Act shall not be exercised except with the consent of the Liverpool Overhead Railway Company (hereinafter referred to as “the company”)—

- (a) under any bridge carrying a railway of the company over any road; or
- (b) so as to obstruct or interfere with the access to or exit from any railway station or depot of the company or any column or structure supporting the overhead railway of the company:

Provided that such consent shall not be unreasonably withheld but may be given subject to any reasonable conditions including the condition that the appropriate authority shall remove any erection either at any time or at or after the expiration of a period if reasonably required so to do by the company and any question arising as to whether any such consent has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any erection has been unreasonably required shall be determined by arbitration.

(2) In this section “appropriate authority” means the Council or any highway authority parish council or local authority upon whom powers (including the power to give any authority or consent) are conferred by the said sections 7 8 9 and 10 of this Act.

For protection of Trafford Park Estates Limited and Trafford Park Company.

**42.** The following provisions for the protection of Trafford Park Estates Limited and the Trafford Park Company shall unless otherwise agreed in writing apply and have effect (that is to say):—

(1) In this section—

“the estates company” means Trafford Park Estates Limited;

“the Trafford Park Company” means the Trafford Park Company incorporated by the Trafford Park Act 1904;

“Trafford Park” means—

(a) the area known as Trafford Park as defined in section 4 (Interpretation) of the Trafford Park Act 1904; and

(b) the area known as “Trafford Park Extension” containing thirty-seven acres or thereabouts situate on the south side of the Bridgewater Canal at Barton and bounded by a line



commencing at a point on the south-west side of the Bridgewater Canal one thousand six hundred and twenty feet measured in a south-easterly direction along the canal bank from the centre line of the aqueduct carrying the said canal over the Manchester Ship Canal thence proceeding in a south-westerly direction for a distance of three hundred and ninety feet to the east side of Ashburton Road thence in a southerly direction along that side of that road for a distance of six hundred and sixty feet to a point on that side of that road opposite the point of junction of the centre lines of Ashburton Road and Redclyffe Road thence proceeding in a straight line in a south-easterly direction for a distance of one thousand six hundred and forty feet thence proceeding at an angle of ninety degrees in a north-easterly direction for a distance of nine hundred and eighty-five feet to the south-west side of the said Bridgewater Canal and thence proceeding in a north-westerly direction along the canal bank for a distance of one thousand five hundred and forty-three feet to and terminating at the point of commencement;

“estate road” means any road or street already laid out or hereafter to be laid out in Trafford Park:

- (2) Nothing in section 6 (Crossings over footways) of this Act shall impose upon the estates company or the owners referred to in section 25 (As to estate roads in Barton upon Irwell) of the Trafford Park Act 1904 or upon the Trafford Park Company or the owners referred to in section 40 (For the protection of owners &c. in Trafford Park) of the Stretford Urban District Council Act 1904 any obligations with respect to paving the spaces between or on each side of any line of rails or of maintaining such paving beyond the obligations in that behalf which are imposed by the said sections of the said Acts of 1904:
- (3) (a) The highway authority shall not in the exercise of the powers of section 7 (Power to erect fences on roads) of this Act place fences or posts on any road in Trafford Park without the consent of the estates company and the Trafford Park Company which consent shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the highway authority shall remove any such fences or posts either at any time or after the expiration of a period if reasonably required so to do;



PART VIII  
—cont.

(b) If any question arises as to whether or not such consent is unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any fences or posts has been unreasonably required either party may require that it shall be referred to and determined by an arbitrator :

- (4) (a) The local authority shall not exercise the powers of section 10 (Shelters etc. for passengers on public service vehicles) of this Act in any estate road without the consent of the estates company and the Trafford Park Company which consent shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the local authority shall remove any shelter or other accommodation or barriers either at any time or at or after the expiration of a period if reasonably required so to do ;

(b) If any question arises as to whether or not such consent has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any shelter or other accommodation or barriers has been unreasonably required it shall be referred to and determined by the Minister of Transport.

## PART IX

## GENERAL

Special provisions as to urban district of Urmston.

43.—(1) The powers and provisions of the following sections of this Act (that is to say) :—

- Section 6 (Crossings over footways) ;
- Section 10 (Shelters etc. for passengers on public service vehicles) ;
- Section 12 (Evasion by owners of private street works expenses) ;
- Section 16 (Definitions for Part IV) ;
- Section 17 (Court may prohibit movable dwellings in certain cases) ;
- Section 18 (Further provisions as to movable dwellings) ;
- Section 19 (Byelaws as to camping grounds) ;
- Section 20 (Savings from certain provisions of Part IV) ;
- Section 26 (Application of section 101 of Act of 1938 to local authorities) ;
- Section 27 (Amendment and extension of section 107 of Act of 1938) ;
- Section 30 (Extension of power to maintain burial grounds) ;



shall not be exercised by the urban district council of Urmston nor apply or have effect within or in relation to the urban district of Urmston.

(2) Section 10 (Power to place fences near school entrances) section 113 (Capital reserve fund) and section 116 (Renewal and repairs fund) of the Urmston Urban District Council Act 1935 are hereby repealed. 25 & 26 Geo. 5.  
c. lxxxviii.

(3) Any fund established under section 113 (Capital reserve fund) of the Urmston Urban District Council Act 1935 shall be carried to and form part of any capital fund provided by the urban district council of Urmston under section 23 (Capital fund of local authorities) of this Act.

44. Where under any general or local Act the Council or a local authority give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent and the provisions of this section shall mutatis mutandis apply to conditions imposed by any highway authority under any provision of this Act. Breach of  
conditions  
of consent.

45. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council or any local authority. Restriction on  
right to  
prosecute.

46. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936. Compensation  
how to be  
determined.

47.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement refusal or other decision of the Council or a local authority or highway authority against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action ; or

(b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time



PART IX  
—cont.

of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

(i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council or a local authority or highway authority themselves execute the work or take the action ; and

(ii) that person may carry on that business and use those premises for that purpose.

Inquiries by  
Ministers.

**48.** The Minister or the Minister of Transport may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Application of  
provisions of  
Act of 1936.

**49.** The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto and as if the expression “ local authority ” included the Council and any local authority (that is to say):—

Section 271 (Interpretation of “ provide ”) ;

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;

Section 276 (Power of local authority to sell certain materials) ;

Section 277 (Power of councils to require information as to ownership of premises) ;

Section 283 (Notices to be in writing ; forms of notices &c.) ;

Section 284 (Authentication of documents) ;

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Section 287 (Power to enter premises) ;

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Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments) ;

Section 292 (Power to make a charge in respect of establishment expenses) ;



- Section 293 (Recovery of expenses &c.) ;  
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Section 295 (Power of local authority to grant charging orders) ;  
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Section 297 (Continuing offences and penalties) ;  
Section 299 (Inclusion of several sums in one complaint &c.) ;  
Section 304 (Judges and justices not to be disqualified by liability to rates) ;  
Section 328 (Powers of Act to be cumulative) ;  
Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part II (Roads buildings etc.) and Part III (Sanitation and food) of this Act.

50. Where under this Act any question or dispute is to be referred to an arbitrator or determined by arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless other provision is made the reference shall be to an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed by the president for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1950 shall apply accordingly.

Arbitration.

14 Geo. 6.  
c. 27.

51. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

52. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund.

Costs of Act.



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